

CONSTRUCTION AND DEVELOPMENT AGREEMENT

THIS CONSTRUCTION AND DEVELOPMENT AGREEMENT (the “Agreement”) is made and executed on this 13th day of May, 2026 (the “Effective Date”),

BY AND BETWEEN:

URBANBUILD DEVELOPERS PRIVATE LIMITED,
a company incorporated under the Companies Act, 2013, having its registered office at Mumbai, Maharashtra
(hereinafter referred to as the “Developer”, which expression shall include its successors and assigns),

AND

RAHUL JAIN,
S/o Suresh Jain, residing at Thane, Maharashtra – 400601,
PAN: ABCPJ5678L
(hereinafter referred to as the “Client”).

The Developer and Client shall collectively be referred to as the “Parties”.

1. PURPOSE

The Developer agrees to undertake construction of a residential building on the Client’s land as per approved architectural designs, engineering specifications, and applicable regulatory approvals.

2. PROJECT DETAILS

- 2.1 Location: Thane, Maharashtra**
 - 2.2 Type: Residential Apartment Building**
 - 2.3 Floors: Ground + 5 Floors**
 - 2.4 Total Built-up Area: Approximately 12,000 sq. ft.**
 - 2.5 Estimated Completion Period: 18 months**
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3. CONTRACT VALUE

- 3.1 Total Cost: ₹1,20,00,000 (Rupees One Crore Twenty Lakh Only)**
- 3.2 The contract value includes:**
 - a) Labor and supervision**

- b) Construction materials**
- c) Equipment and machinery**
- d) Basic electrical and plumbing work**

3.3 Any additional work shall be charged separately upon mutual agreement.

4. PAYMENT SCHEDULE

- a) ₹20,00,000 – Initial advance upon agreement signing**
- b) ₹40,00,000 – Completion of foundation and plinth**
- c) ₹40,00,000 – Completion of structural framework**
- d) ₹20,00,000 – Final handover**

4.2 Payments shall be made within 7 days of milestone completion.

4.3 Delayed payments shall attract 2% monthly interest.

5. MATERIALS AND QUALITY STANDARDS

5.1 All materials shall comply with Bureau of Indian Standards (BIS)

5.2 The Developer shall ensure quality workmanship

5.3 Client has the right to inspect materials and construction at reasonable times

5.4 Any substandard material shall be replaced at Developer's cost

6. PROJECT EXECUTION AND SUPERVISION

6.1 Developer shall appoint qualified engineers and supervisors

6.2 Construction shall be carried out in accordance with approved plans

6.3 Developer shall maintain site records and progress reports

7. DELAYS AND PENALTIES

7.1 Delay penalty: ₹25,000 per week

7.2 Maximum penalty capped at 10% of total contract value

7.3 Delay beyond 3 months may allow Client to terminate the Agreement

7.4 No penalty in case of force majeure events

8. APPROVALS AND PERMITS

8.1 Developer shall obtain necessary municipal approvals

8.2 Client shall provide ownership documents

8.3 All construction must comply with local building regulations

9. SAFETY AND INSURANCE

9.1 Developer shall ensure safety of workers and site

9.2 Developer shall maintain insurance coverage for:

a) Workers

b) Equipment

c) Third-party liabilities

10. LIABILITY AND DAMAGES

10.1 Developer shall be liable for structural defects for a period of 12 months

10.2 Liability shall be limited to repair or replacement

10.3 Developer shall not be liable for damages due to misuse by Client

11. VARIATION AND CHANGE ORDERS

11.1 Any changes to design or scope must be documented in writing

11.2 Additional cost and time shall be mutually agreed

12. TERMINATION

12.1 Either party may terminate the Agreement in case of breach

12.2 Client may terminate if work quality is unsatisfactory

12.3 Developer shall be compensated for completed work

13. INDEMNITY

Developer agrees to indemnify Client against losses arising from negligence, non-compliance, or breach of contract

14. FORCE MAJEURE

Neither party shall be liable for delays caused by events beyond control including natural disasters, strikes, or government restrictions

15. DISPUTE RESOLUTION

15.1 Disputes shall be resolved through arbitration

15.2 Arbitration shall be conducted in Mumbai

15.3 Governed by Arbitration and Conciliation Act, 1996

16. GOVERNING LAW

This Agreement shall be governed by the laws of India

17. NOTICES

All notices shall be in writing and sent via registered post or email

18. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties

19. SEVERABILITY

If any provision is invalid, the remaining provisions shall remain enforceable

20. AMENDMENT

Any modification must be in writing and signed by both Parties

21. DIGITAL EXECUTION

This Agreement may be executed electronically and shall be legally valid

ANNEXURE A – MATERIAL SPECIFICATIONS

- **Cement: OPC 53 Grade**
 - **Steel: TMT Bars (Fe500)**
 - **Bricks: Red Clay Bricks**
 - **Electrical: ISI certified**
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ANNEXURE B – PROJECT TIMELINE BREAKDOWN

Month 1–3: Foundation

Month 4–10: Structure

Month 11–15: Finishing

Month 16–18: Final inspection

SIGNATURES

For URBANBUILD DEVELOPERS PRIVATE LIMITED (Developer)

Signature: _____

Name: Authorized Signatory

Designation: _____

Date: _____

Client

Signature: _____

Name: Rahul Jain

Date: _____

WITNESSES

Witness 1:

Name: Amit Sharma

Address: Mumbai

Signature: _____

Witness 2:

Name: Sneha Patil

Address: Pune

Signature: _____

NOTARY

Notary Public

(Seal)

Commission Expiry: _____